

## FL-26-000874 IZZON VS IZZO

County: stanislaus

Division: Family Law

Department: 25

Hearing date: 2026-07-08

Motion: Petitioner's Request for Order re Spousal Support, etc.—HEARING REQUIRED. Notice and service are not at issue given Respondent's request for remote appearance and the filing of a Response to the Petition for Dissolution and Respondent's Income and Expense Declaration. Respondent did not file a Responsive Declaration to the Request for Order, however, but is nevertheless entitled—as is Petitioner—to offer live testimony under oath at the hearing. (Fam. Code, § 217.) Turning to the merits, the need-based request for spousal support and attorney's fees and costs are not eligible for tentative ruling as they require factual findings and will be addressed at the hearing. (Local Rules, rule 7.06(A).) While child support is also typically not eligible for the same reasons, in this case the request concerns a child of the marriage that has reached the age of majority. Unfortunately, Petitioner's counsel did not provide a brief addressing the legal questions and Respondent is self-represented. Accordingly, the Court notes that Petitioner's order request presents a mixed question of law and fact and this tentative ruling will address the former. The general rule is that both parents have an equal responsibility to support their child during minority "suitable to the child's circumstances." (Fam. Code, § 3900.) With exceptions not applicable here, this duty of support ends when the minor reaches the age of majority at 18 and is otherwise able to be self-supported, unless the parents enter into an express or implied agreement to continue support beyond minority. (Fam. Code, § 3901(a), (b).) Here, Petitioner alleges that the parties' adult minor child is incapable of self-support due to the child's medical condition. The law provides for adult child support as follows: Each parent of a child has an equal responsibility to maintain, to the extent of their ability, their child of whatever age who is incapacitated from earning a living and without sufficient means. (Fam. Code, § 3910(a), emphasis added.) The legislative intent and public policy expressed in this statute is to protect the public from the burden of supporting a person who has one or more parents capable of doing so. (In re Marriage of Cady & Gamick (2024) 105 Cal.App.5th 379, 389, 403 [reviewing legislative history]; In re Marriage of Cecilia & David W. (2015) 241 Cal.App.4th 1277, 1286.) This duty of adult child support is bilateral, i.e., owed by both parents equally, and the resulting financial obligation, if imposed, is treated as a "joint and several liability," with attendant consequences under the law of remedies in terms of equitable contribution, equitable indemnity and/or subrogation. (Chun v. Chun (1987) 190 Cal.App.3d 589, 597; Marriage of Drake (1997) 53 Cal.App.4th 1139, 1161.) And the Family Law Division of the Superior Court has statutory subject matter jurisdiction to entertain and adjudicate an adult child support order in any marital or other proceeding under the Family Code where the matter is placed at issue and the Court's jurisdiction is both continuing and may not be divested or terminated even by the parties' express agreement to do so. (Fam. Code, §§ 50, 2010(c), 4001; In re Marriage of Cecilia & David W., supra, 241 Cal.App.4th at 1287; Marriage of Lambe & Meehan (1995) 37 Cal.App.4th 388, 391-393.) There are two threshold factual findings that determine whether adult child support is statutorily mandated: (1) whether the adult child is "incapacitated from earning a living"; and (2) whether the adult child is "without sufficient means." The first finding requires proof that the adult child has demonstrated an inability to become self-supporting because of a mental or physical disability, or by proof of inability to find work due to other factors beyond the adult child's control. (In re Marriage of Cecilia & David W., supra, 241 Cal.App.4th at 1285-1286 ["the incapacity standards require courts to focus not on the adult child's conditions and their potential impact on employment, but rather on his or her ability to find work or become self-supporting in light of such conditions"].) Here, Petitioner's declaration simply states in a conclusory fashion that the parties' adult child is "disabled" without more. Petitioner also offers a "declaration" entitled "Report of Private Investigator, Louie P. Galindez," that states—also in conclusory fashion—that the adult child cannot care for himself, has ongoing behavioral and developmental challenges, and that Petitioner is in need of "professional help" to assist with the adult child's care due to alleged and unspecified instances of threats and acts of self-harm. The only direct interaction with the adult child referenced in this document is that, when spoken to by the investigator, the adult child had a "blank look on his face" and did not respond. Petitioner's Request for Order, which is technically a declaration due to the wording of the FL-300 mandatory form, also states that the adult child has been diagnosed with autism and bipolar disorder, and then offers the conclusory assertion that due to these diagnoses the adult child "remains dependent on ongoing care and support," and is "unable to be fully self-sufficient." Even without any opposing declaration from Respondent, Petitioner's evidence is insufficient for a finding on the first threshold element. The private investigator's report is not an affidavit or declaration signed under penalty of perjury and, except for non-responsiveness by the adult child when questioned, is entirely devoid of non-hearsay facts within the investigator's personal knowledge. (Cal. Rules of Ct., rule 5.111(b)(2) ["A declaration must be based on personal knowledge and explain how the person has acquired that knowledge. The statements in the declaration must be admissible in evidence"], emphasis added.) There is no corroborating medical evidence offered to support the expert medical opinion of the adult child's alleged diagnoses and, even assuming this to be the case, the Court's finding must be based not merely on whether the adult child does or doesn't have a particular diagnosis or disability, but "rather on his or her ability to find work or become self-supporting in light of such conditions." (In re Marriage of Cecilia & David W., *ibid.*) In sum, there is a dearth of

sufficient and competent evidence for the Court to make the first required threshold finding based on this showing. As both threshold findings are required, this obviates the need to consider the second finding but, for future reference should the matter ever be renewed, the Court offers the following observations gleaned from the caselaw. The question of “sufficient means” is to be determined not by any marital standard of living test, as with spousal support, nor by any accustomed financial circumstances consistent with the child’s best interests within the parties’ ability to pay standard as with support of minor children, but rather by the likelihood that without court-ordered support the adult child will become a public charge. (Marriage of Drake, supra, 53 Cal.App.4th at 1154.) Lastly, it is important to note that, even if court-ordered adult child support is found to be necessary and appropriate, any payments ordered do not necessarily go to the party currently having physical custody of the adult child, but may in the Court’s discretion be ordered payable to a “special needs trust” or, in appropriate cases, to a conservator, guardian or legal representative of the adult child. It should therefore not be presumed that any money Respondent is ordered to pay for adult child support will be paid to Petitioner. Moreover, to the extent that Respondent is ordered to pay temporary spousal support and/or attorney’s fees and costs, those payments must be factored into any determination of Respondent’s ability to pay, along with a determination of Petitioner’s own ability to pay (or offsetting credit) of her co-equal duty to pay whatever amount is set for adult child support. (See, Hogoboom & King, Cal. Prac. Guide Family L. (TRG 2026) Ch. 6-A, § 6:56-6:57.) In short, the Court is inclined to deny the request for adult child support without prejudice but, as noted infra, the Court’s statutory jurisdiction over the issue is reserved and may not be terminated as a matter of law. Administrative ADA Accommodations Locations and Contact Info Privacy Policy Attorney Resources Judicial Council Forms Court Calendars California Court Self-Help Center California Judicial Branch Public Resources Court Holidays Stanislaus County Employee Access Outlook Share Point Superior Court of California County of Stanislaus Judicial Branch of California Privacy Terms of Use © 2026

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/family-law-tentative-rulings>

Source SHA-256: eeb96213af337d63204e9913974b9593113ddd5bbb53ecc04ca465bd5ffcec25

FL-26-000874 – IZZON VS IZZO

Petitioner’s Request for Order re Spousal Support, etc.—HEARING REQUIRED.

Notice and service are not at issue given Respondent’s request for remote appearance and the filing of a Response to the Petition for Dissolution and Respondent’s Income and Expense Declaration.

Respondent did not file a Responsive Declaration to the Request for Order, however, but is nevertheless entitled—as is Petitioner—to offer live testimony under oath at the hearing. (Fam. Code, § 217.)

Turning to the merits, the need-based request for spousal support and attorney’s fees and costs are not eligible for tentative ruling as they require factual findings and will be addressed at the hearing. (Local Rules, rule 7.06(A).)

While child support is also typically not eligible for the same reasons, in this case the request concerns a child of the marriage that has reached the age of majority. Unfortunately, Petitioner’s counsel did not provide a brief addressing the legal questions and Respondent is self-represented. Accordingly, the Court notes that Petitioner’s order request presents a mixed question of law and fact and this tentative ruling will address the former.

The general rule is that both parents have an equal responsibility to support their child during minority “suitable to the child’s circumstances.” (Fam. Code, § 3900.) With exceptions not applicable here, this duty of support ends when the minor reaches the age of majority at 18 and is otherwise able to be self-supported, unless the parents enter into an express or implied agreement to continue support beyond minority. (Fam. Code, § 3901(a), (b).) Here, Petitioner alleges that the parties’ adult minor child is incapable of self-support due to the child’s medical condition. The law provides for adult child support as follows:

Each parent of a child has an equal responsibility to maintain, to the extent of their ability, their child of whatever age who is incapacitated from earning a living and without sufficient means. (Fam. Code, § 3910(a), emphasis added.)

The legislative intent and public policy expressed in this statute is to protect the public from the burden of supporting a person who has one or more parents capable of doing so. (In re Marriage of Cady & Gamick (2024) 105 Cal.App.5th 379, 389, 403 [reviewing legislative history]; In re Marriage of Cecilia & David W. (2015) 241 Cal.App.4th 1277, 1286.)

This duty of adult child support is bilateral, i.e., owed by both parents equally, and the resulting financial obligation, if imposed, is treated as a “joint and several liability,” with attendant consequences under the law of remedies in terms of equitable contribution, equitable indemnity and/or subrogation. (Chun v. Chun (1987) 190 Cal.App.3d 589, 597; Marriage of Drake (1997) 53 Cal.App.4th 1139, 1161.)

And the Family Law Division of the Superior Court has statutory subject matter jurisdiction to entertain and adjudicate an adult child support order in any marital or other proceeding under the Family Code where the matter is placed at issue and the Court’s jurisdiction is both continuing and may not be divested or terminated even by the parties’ express agreement to do so. (Fam. Code, §§ 50, 2010(c), 4001; In re Marriage of Cecilia & David W., supra, 241 Cal.App.4th at 1287; Marriage of Lambe & Meehan (1995) 37 Cal.App.4th 388, 391-393.)

There are two threshold factual findings that determine whether adult child support is statutorily mandated: (1) whether the adult child is “incapacitated from earning a living”; and (2) whether the adult child is “without sufficient means.”

The first finding requires proof that the adult child has demonstrated an inability to become self-supporting because of a mental or physical disability, or by proof of inability to find work due to other factors beyond the adult child’s control. (In re Marriage of Cecilia & David W., supra, 241 Cal.App.4th at 1285-1286 [“the incapacity standards require courts to focus not on the adult child’s conditions and their potential impact on employment, but rather on his or her ability to find work or become self-supporting in light of such conditions”].)

Here, Petitioner’s declaration simply states in a conclusory fashion that the parties’ adult child is “disabled” without more. Petitioner also offers a “declaration” entitled “Report of Private Investigator, Louie P. Galindez,” that states—also in conclusory fashion—that the adult child cannot care for himself, has ongoing behavioral and developmental challenges, and that Petitioner is in need of “professional help” to assist with the adult child’s care due to alleged and unspecified instances of threats and acts of self-harm. The only direct interaction with the adult child referenced in this document is that, when spoken to by the investigator, the adult child had a “blank look on his face” and did not respond. Petitioner’s Request for Order, which is technically a declaration due to the wording of the FL-300 mandatory form, also states that the adult child has been diagnosed with autism and bipolar disorder, and then offers the conclusory assertion that due to these diagnoses the adult child “remains dependent on ongoing care and support,” and is “unable to be fully self-sufficient.”

Even without any opposing declaration from Respondent, Petitioner’s evidence is insufficient for a finding on the first threshold element. The private investigator’s report is not an affidavit or declaration signed under penalty of perjury and, except for non-responsiveness by the adult child when questioned, is entirely devoid of non-hearsay facts within the investigator’s personal knowledge. (Cal. Rules of Ct., rule 5.111(b)(2) [“A declaration must be based on personal knowledge and explain how the person has acquired that knowledge. The statements in the declaration must be admissible in evidence”], emphasis added.) There is no corroborating medical evidence offered to support the expert medical opinion of the adult child’s alleged diagnoses and, even assuming this to be the case, the Court’s finding must be based not merely on whether the adult child does or doesn’t have a particular diagnosis or disability, but “rather on his or her ability to find work or become self-supporting in light of such conditions.” (In re Marriage of Cecilia & David W., *ibid.*) In sum, there is a dearth of sufficient and competent evidence for the Court to make the first required threshold finding based on this showing.

As both threshold findings are required, this obviates the need to consider the second finding but, for future reference should the matter ever be renewed, the Court offers the following observations gleaned from the caselaw. The question of “sufficient means” is to be determined not by any marital standard of living test, as with spousal support, nor by any accustomed financial circumstances consistent with the child’s best interests within the parties’ ability to pay standard as with support of minor children, but rather by the likelihood that without court-ordered support the adult child will become a public charge. (Marriage of Drake, supra, 53 Cal.App.4th at 1154.)

Lastly, it is important to note that, even if court-ordered adult child support is found to be necessary and appropriate, any payments ordered do not necessarily go to the party currently having physical custody of the adult child, but may in the Court's discretion be ordered payable to a "special needs trust" or, in appropriate cases, to a conservator, guardian or legal representative of the adult child. It should therefore not be presumed that any money Respondent is ordered to pay for adult child support will be paid to Petitioner. Moreover, to the extent that Respondent is ordered to pay temporary spousal support and/or attorney's fees and costs, those payments must be factored into any determination of Respondent's ability to pay, along with a determination of Petitioner's own ability to pay (or offsetting credit) of her co-equal duty to pay whatever amount is set for adult child support. (See, Hogoboom & King, Cal. Prac. Guide Family L. (TRG 2026) Ch. 6-A, § 6:56-6:57.)

In short, the Court is inclined to deny the request for adult child support without prejudice but, as noted *infra*, the Court's statutory jurisdiction over the issue is reserved and may not be terminated as a matter of law.

Administrative

ADA Accommodations

Locations and Contact Info

Privacy Policy

Attorney Resources

Judicial Council Forms

Court Calendars

California Court

Self-Help Center

California Judicial Branch

Public Resources

Court Holidays

Stanislaus County

Employee Access

Outlook

[Share Point](#)

[Superior Court of California  
County of Stanislaus](#)

[Judicial Branch of California](#)

[Privacy](#)

[Terms of Use](#)

© 2026